

FIFE COUNCIL

INTEGRATED INCOME COLLECTION AND DEBT RECOVERY POLICY

INTRODUCTION

- 1.1 This document details the Council's policies on the billing, collection and recovery of monies due to the Council.
- 1.2 This Policy sets out the general principles to be applied in relation to income collection and debt management across all services provided by the Council. The Council collects income from various streams; some of this activity is governed by legislation and others by sound principles of financial management. The policy is designed to provide support to customers where it is identified they require money advice and income maximisation. This support will be carried out by our partners such as CARF using the online FORT referral system.
- 1.3 The policy will apply to all Council Services and seeks to be fair but firm; it is essential that all monies due are collected effectively by the Council, and that debt owed to the Council is kept to a minimum. This is because the Council has both a legal duty and a responsibility to its citizens to ensure that income due is received promptly, and to allow for the re-investment of our income in Council Services whilst at the same time striking the balance where a customer is in genuine difficulty in meeting their obligations.
- 1.4 Sums due to the Council can be a mixture of statutory and non-statutory charges. The methods for billing, collection and recovery of the statutory debts are tightly prescribed by statute. Our recovery practices must take account of this diversity.
- 1.5 An effective debt management process is critical to the delivery of the Council objectives. This policy will be underpinned by the creation and maintenance of a clear framework setting out a consistent and sensitive approach to collecting debt, whilst at the same time ensuring the Council continues to maximise collection performance. A full range of recovery methods will be used as appropriate if debts are not paid.

1.6 In undertaking a collection function it is inevitable that Fife Council will be required to pursue the recovery of arrears from persons and or businesses who may experience difficulty in paying such accounts. An agreed policy of how the Council manages and collects debts is therefore key to ensuring consistency and best practice in such situations.

2 AIMS AND OBJECTIVES

2.1 The aim is to maximise income collection to Fife Council and to minimise the cost of collection, while maintaining and improving the customer experience through collection and recovery.

2.2 The objectives of the integrated income collection and debt recovery policy in achieving that aim are to:

(a) Bill, collect and recover charges and rents in an economic, effective and efficient manner that meets with legislation and best practice.

(b) Identify, where appropriate, support which may be required to those owing money to the Council, and ensure individual circumstances are taken into consideration safeguarding income maximisation.

(c) Encourage people to pay regularly; using the most cost effective methods provided that method meets the needs of the person.

(d) Promote early personal contact across all debt streams, recognising the need to prevent debts escalating.

(e) Standardise the approach to debt collection to ensure consistency of approach whilst complying with different legal aspects of the debt.

(f) Enter into sustainable arrangements for payment of debts at all stages of recovery recognising that where this cannot be

achieved; we will take recovery action using the appropriate legal powers.

(g) Apply best practice to debt collection, to ensure all debtors are treated fairly and objectively, therefore minimising any potential disputes.

(h) Understand the requirements of client services within the Council including the need to protect vulnerable people and sustain persons in their homes.

3 SCOPE:

3.1 The policy applies to the collection and recovery of all council debt and includes all income streams and debts owed to the Council including:

a Council Tax

b Rents, both housing and others, e.g. garages and commercial

c Housing Benefit overpayments

d Non Domestic Rates

e Income Recovery, e.g. Invoices, fees and charges, overpayments of employees salary or expenses.

f Legal costs

g Other

3.2 There are specific rules and regulations which govern the recovery and collection of specific debts. While section 4 below sets out shared, general principles, Appendices 1 - 6 set out the differences in collection for each debt type in accordance with regulation and legislation.

4 GENERAL CUSTOMER PRINCIPLES

4.1 Fife Council's customer service principles will be followed in implementing this policy.

4.2 When dealing with Income Collection and Recovery, the Council will follow the principles outlined below:

- (a) We will be courteous when dealing with customers including in written correspondence.
- (b) Our approach will be consistent and transparent at all times
- (c) We will be proportionate with the size and frequency of the debt
- (d) We will be to be firm and fair with each customer.
- (e) We will encourage customers to make early contact in respect of debt related matters.
- (f) We will take into account the current economic climate and individual financial circumstances to ensure the customer's needs are met
- (g) We will provide assistance for people who have language or sensory communication needs
- (h) We will ensure that all customers who require further assistance are provided with this.
- (i) Where disputes arise these will be investigated fairly and timeously with outcomes explained in full.
- (j) We will respect and protect the customer's rights throughout the recovery process

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4.3 We will resolve debt problems pro-actively and at the earliest opportunity to help customers to maximise their income, and alleviate financial hardship.

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4.4 We will take a firm but fair approach to recovery and enforcement, offering help and support to all customers experiencing financial difficulties at each stage of the collection and recovery process.

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4.5 Wherever possible, we will seek a solution so the customer is better able to manage their finances and meet future liabilities. We will provide benefit and debt advice where

appropriate and when necessary refer to third parties for specialist Money Advice e.g. CARF.

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4.6 There may be instances where court action will be taken to allow legal diligences to be used to recover the debt. These include bank/wages arrestment's, sequestrations, inhibitions etc. These will only be invoked where the customer continually fails to maintain a pre-arranged agreement or will not engage with Fife Council.

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4.7 Fife Council may appoint Sheriff Officers or Debt Collection Agencies to assist in recovering outstanding debt where it has been unable to enter into any repayment schedule with the customer. This will be done within the rules and regulations covering each debt stream.

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4.8 If at any stage, a customer makes contact with the Council and arranges and maintains an affordable repayment arrangement, the recovery process will be suspended however any statutory penalties already applied will remain.

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5 SEQUESTRATION (LIQUIDATION)

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5.1 In certain circumstances, and if sufficient assets exist to meet the outstanding debt the Council can petition for Sequestration/Liquidation. This is used where other methods of recovery are considered inappropriate or have failed and bankruptcy action appears to be a fair and proportionate course of action to recover from a particular debtor.

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6 PRIORITISATION OF DEBT

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6.1 In the first instance an agreement will be sought from the customer to maintain current/future payments for on-going liabilities. Where this is not possible or where arrears have accrued for more than one debt stream then one affordable arrangement should be sought. The customer must be in agreement that they wish their payment to be split and the proportion for each debt.

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6.2 The aim is to prioritise and support customers to reduce their rent arrears and maintain their tenancy, while at the same time allowing other Council debts to be reduced.

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6.3 Priority debts are those debts owed to creditors who can take the strongest legal action against an individual who does not pay or where the action taken by a creditor may cause undue hardship.

6.4 Where on-going liability is being met, recovery of other Council debts in arrears will then be considered:

- Rent
- Council Tax
- Business Rates
- Income Recovery (Invoices)

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6.5 The above priority arrangement will be varied depending on the amount of debt or each debt stream and where Fife Council considers the split would be more fairly apportioned, as agreed with the customer.

6.6 Where an arrangement is in place and only partially paid, Rent and Council Tax will take priority over other debt types.

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6.7 Housing Benefit overpayments will be recovered as per the statutory provisions laid down by the Department for Work and Pensions (DWP) as shown in appendix 5.

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6.8 Where the corporate debt arrangement cannot be maintained and where re negotiation has failed, then Fife Council has the right to pursue each debt using the recovery methods, procedures and legislation applicable to that debt stream.

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7 WRITE OFF

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7.1 The Council recognises that where a debt is irrecoverable, prompt and regular write off of such debts is good practice.

Debts to the Council that are covered by this policy will be dealt with as follows, in line with the Write Off Policy:

- - (a) Write off irrecoverable debt is kept to a minimum by early intervention and best practice in recovery.
 - (b) There is a framework of consistent guidelines and procedures to follow once every possible recovery process has been exhausted.
 - (c) There is a balance struck between protecting the Council's financial position and ensuring anti-poverty issues are addressed.
 - (d) Write offs are carried out in a regular planned process.
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8 OFFSET CREDITS AGAINST COUNCIL DEBT AND REFUNDS

- - 8.1 The Council will adopt a corporate approach to refunding credits or making payments, in that wherever possible checks will be made for other outstanding debts due to the Council, prior to a refund or payment being made.
- - 8.2 Where these checks identify outstanding debts and specifically where the debt is for a similar nature e.g. Council Tax / Rent arrears then the debt will normally be offset and the customer advised.
- - 8.3 Where this is not the case then consultation and advice will be sought from legal services before any offset is invoked.
- - 8.4 Where a customer continues to pay an arrangement which has been paid in full, and no other debt is identified, they will receive a refund.
- - 8.5 Refunds will normally be made via bacs transfer, however on the occasion of an urgent credit being required a faster payment will be made.

9 PERFORMANCE MONITORING AND REVIEW OF POLICY

- - 9.1 Collection targets will be set annually and regularly monitored and performance reviewed against these targets.

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9.2 The Corporate Debt policy will be reviewed in the light of any legislative changes, trends or other factors that impact on the effectiveness of the policy.

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The following appendices highlight collection and recovery methods applicable to the individual debt streams which are not already covered in the main Corporate Debt Policy.

Appendix 1 – Council Tax

Appendix 2 – Business Rates

Appendix 3 - Rents

Appendix 4 – Sundry Debt

Appendix 5 – Housing Benefit Overpayment

Appendix 6 – Overpayment of Employee Salary or Expenses

Head of Revenue and Commercial Services

Fife House

Glenrothes

Date 29/08/2024

Consultees:

Citizens Advice and Rights Fife (CARF)

Finance Service

Housing Service

Trading Standards Service

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Appendix 1

FIFE COUNCIL
RECOVERY OF COUNCIL TAX

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1. INTRODUCTION

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1.1 Council Tax is a tax levied on all eligible domestic dwellings. The amount of Council Tax levied is dependent on the Council Tax band that the property falls into and the amount of tax to be raised.

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1.2 The full rate of Council Tax is liable to be paid unless the property, owner or occupier is eligible for a reduction or exemption.

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1.3 Council Tax is payable in line with a statutory instalment scheme or by agreement. There is a legal duty placed on the Council and its Officers to collect outstanding debts in accordance with The Council Tax (Administration and Enforcement) (Scotland) Regulations 1992.

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2. COLLECTION & RECOVERY

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2.1 Fife Council will bill, collect and recover all debts for Council Tax purposes in accordance with legislation.

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2.2 Demand notices and revised notices will be issued in accordance with regulations.

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2.3 Each financial year a recovery timetable will be created detailing the relevant dates reminders will be produced.

2.4 Overdue notices shall be run any day after the instalment due date in accordance with legislation.

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2.5 If an overdue notice is not paid in full by the due date a petition and a full list of debtors will be taken to the appropriate court and signed by a Sheriff authorising a 10% statutory penalty which is added to the outstanding balance. Summary Warrant reminders will then be issued to the customer detailing the total amount due including the penalty.

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2.6 If the amount is not paid in full or a suitable repayment arrangement made then Fife Council may either take deductions from certain state benefits to clear the debt or the Sheriff Officer can enforce one of the diligences available to them e.g. earnings or bank arrestment.

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2.7 On receipt of any of the above reminders from Fife Council or Sheriff Officers a debtor can contact the team to make arrangement for payment of any balance or to notify of any discrepancies.

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Appendix 2

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FIFE COUNCIL RECOVERY OF BUSINESS RATES

1.0 INTRODUCTION

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1.1 Business (Non Domestic) Rates is a tax levied on business properties which Fife Council statutorily administers on behalf on the Scottish Government.

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1.2 Billing is carried out annually in April and monthly thereafter. Bills contain all statutory data together with details of common reliefs' available and promotional information.

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1.3 Non-Domestic Rates will be administered and collected using the guidance set out in the legislation as detailed in Local Government Scotland Act 1947.

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2.0 COLLECTION & RECOVERY

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2.5 If the Summary Warrant notice is not paid in full a pre sheriff notice is issued, thereafter it may be passed to a nominated Sheriff Officer for collection.

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2.6 The Sheriff Officer may enforce payment of the arrears by various forms of diligence available to them e.g. bank arrestment, money attachment, sale of attached goods.

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2.7 The ratepayer or their nominated representative can contact the Council and/or Sheriff Officers at any stage of recovery to enter into a payment plan for repayment of the sum due or to discuss issues in relation to the amount charged.

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2.8 Where the debt is not passed to a Sheriff Officer then debt analysis is carried out to determine the appropriate action required e.g. liquidation, sequestration etc.

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Appendix 3

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FIFE COUNCIL MANAGING RENT DEBT

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1.0 INTRODUCTION

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1.1 Fife Council is a social landlord for approx. 32,000 properties in Fife.

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1.2 The tenancy agreement between the Council and its tenants explains the tenant's responsibility to pay rent in advance. When this fails early intervention is paramount in engaging with the tenant to provide advice and support to sustain their tenancy and prevent home loss due to rent arrears.

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2.0 COLLECTION OF RENT

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2.1 Ensure effective debt recovery is balanced with the Council's aims of improving quality of life, reducing poverty, promoting a sustainable society and delivering excellent services.

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2.2 Provide a staged, but escalated, process to recover rent arrears with legal action only taken where there is an intention to seek Decree for Eviction, Expenses and Payment.

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2.3 Ensure that all seven Pre-Action Requirements (PARs) are met before we formally serve Notice on tenants that we intend to take court action which could end their tenancy.

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2.4 Make use of appropriate legal remedies to recover rent, and former tenancy arrears to ensure that eviction is only used as a last resort.

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2.5 Evict tenants for rent arrears within 3 months of the Decree being awarded by the Court, unless the Head of Housing decides that eviction should be deferred based on consideration of individual circumstances

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2.6 Advise any person who has been evicted for rent arrears of any statutory obligations the Council has toward them in terms of homelessness and other relevant legislation.

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2.7 Where appropriate, withhold non-statutory, optional or discretionary housing services until rent debt has been cleared or reduced by a reasonable amount depending on the individual circumstances.

2.8 When a tenant terminates a tenancy if there is an outstanding rent balance due to Fife Council, the council will collect any monies due using the normal debt collection policy

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Appendix 4

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FIFE COUNCIL
INCOME RECOVERY (INVOICES)

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1. INTRODUCTION

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1.1 Fife Council is responsible for billing and collection of all charges levied by the Council for services provided and plays a significant part in funding the Council's overall budget.

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2. CHARGING

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2.1.1 The responsibility for charging lies with the relevant issuing service that will:-

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2.1.2 Ensure whenever possible that collection of the fee or charge involved takes place prior to the service being provided.

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2.1.3 The charge must be collectable e.g. requiring evidence to support the issue of the invoice being raised.

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2.1.4 Invoices will be raised ASAP when the charge is due and payable and no later than 10 days of the goods or service being supplied.

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2.2 Invoices will not be raised:-

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2.2.1 For less than £10.This will be reviewed on a regular basis.

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2.2.2 Where there is no written agreement or the debt cannot be substantiated.

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2.2.3 Where the current address is not known, debtor unknown and/or the amount due is unknown

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2.2.4 If an invoice has been raised in any of these circumstances they will be cancelled by the Income Recovery or Corporate Debt team.

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2.3 Disputes

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2.3.1 Where a debt is in dispute, the debt will remain the responsibility of the issuing service. The dispute must be resolved within 20 working days. Where a dispute cannot be resolved within 20 working days, the issuing service must notify the Income Recovery or Corporate Debt team of the reason; indicating when the dispute should be resolved. If the team are not notified after 20 working days have expired, invoices will be cancelled in full.

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2.3.2 The issuing Services will assist the collection of debt by attempting to resolve disputes as quickly as possible.

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2 COLLECTION & RECOVERY

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3.1 Reminders will be issued when an invoice is overdue and customers will be contacted by telephone where possible.

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3.2 The council will use External Collection agents, Sheriff Officers and Council Solicitors to recover debts as appropriate.

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3.3 Income Recovery team will work with issuing services to ensure the debt is recoverable.

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3.4 Customers who receive on-going services from the council may have these services suspended or withdrawn if they have unpaid invoices relating to these services.

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Appendix 5

FIFE COUNCIL

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HOUSING BENEFIT OVERPAYMENT RECOVERY

1 INTRODUCTION

1.1 Fife Council is responsible for the administration of housing benefit. The Council is committed to protecting public funds and will take all possible steps to recover overpayments of these benefits.

1.2 Customers are encouraged to prevent overpayments occurring by notifying the council as soon as possible of any changes that may affect the amount of benefit that they are entitled to.

2 RECOVERY

2.1 Where it has been identified that a claimant of housing benefit has been overpaid, and the overpayment is recoverable in accordance with the relevant statutory provisions, Fife Council will consider on a case by case basis whether it is reasonable to recover the overpayment, from whom it can be recovered and the appropriate means of recovery.

2.2 All legally available methods of recovery will be employed to recover outstanding overpaid benefit. These methods include:-

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- Direct deductions from on-going housing benefit or arrears of housing benefit.
- Direct deductions from landlords payments of housing benefit.
- Recovery from on-going housing benefit in another local authority area.
- Recovery from Department for Work and Pensions (DWP) benefit.
- Invoice
- Attachment of Earnings

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2.3 Overpayments will be recovered from on-going entitlement to Housing Benefit at a rate advised by the DWP, dependent on the type of income the claimant receives and the reason for the overpayment. Consideration will be given to individual financial circumstances and deductions reduced where appropriate.

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2.4 If there is no on-going entitlement to Housing Benefit direct deductions can be taken from a DWP benefit. These rates are set by the DWP and based on the type of benefit being received. Any reductions to these set amounts require the customer to negotiate direct with the DWP.

3 APPEALS

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A person can appeal an overpayment decision in accordance with the HB and CTB (Decisions and Appeals) Regulations 2001. Recovery of the overpayment is suspended pending the outcome of an appeal.

Appendix 6

FIFE COUNCIL

RECOVERY OF EMPLOYEE SALARY OR EXPENSES (PY06)

POLICY

Where an overpayment of salary or expenses has been identified, any excess payment will normally be recovered.

Scope

This policy and procedure applies to all Fife Council employees.

PROCEDURE

Guidelines

- Recovery of overpayment will be the normal approach.
- The principles of the Corporate Debt Recovery Policy will apply.
- There may be circumstances when partial repayment or writing off the overpayment are considered.
- Transactions will provide a written explanation of the overpayment. This will detail, where relevant:
 - How the overpayment occurred.
 - Over what period overpayment occurred.
 - The total amount overpaid.
 - The net amount to be repaid once deductions for tax and NI contributions are taken into account.
- A meeting will be held with the employee who has received the overpayment unless the overpayment is minor (less than 5% of gross annual salary and identified within 6 months).
- Deductions from salary will not normally be more than 10% of the gross salary due in each pay period.
- While legislation does not require written consent (for example, a signed “mandate”), efforts will be made to obtain agreement in writing for overpayments. Where there is a failure to reach agreement, the recovery process should still proceed.
- In all cases of recovery, the amount being repaid must not result in the employee’s basic hourly rate being less than the national minimum wage.

Repayment

A meeting should be held with the employee to discuss the detail of the overpayment and how this will be recovered. The employee is entitled to be accompanied at this meeting.

Repayment will be sought in full where the overpayment:

- 1) Is the result of incorrect information submitted by the employee

OR

- 2) The error was known to the employee or was apparent from information supplied to the employee

OR

3) The amount of overpayment was such that a reasonable employee would have suspected an error had occurred.

Repayment may be made in instalments over a reasonable period not exceeding 12 months or the period equivalent to that during which the error occurred, whichever is longer.

Factors Impacting Recovery of Overpayments

Where the overpayment was not known to the employee, and could not reasonably have been suspected, then providing the overpayment was not the result of incorrect information provided by the employee, consideration will be given to whether, in all the circumstances, it is reasonable to seek repayment.

Where an employee can show that they have spent the money received under a genuine belief that it was theirs and that it would cause undue hardship if full repayment were made, the Head of Revenue & Commercial Services, in consultation with Legal & Democratic Services and Human Resources may agree to waive all or part of the repayment due.

Failure to Agree Repayment Plan

If there is a failure to agree a repayment plan the employee, or their representative, may ask for the matter to be referred to the Head of Revenue & Commercial Services and Head of HR on behalf of the Executive Director Finance & Corporate Services.

The Head of Revenue & Commercial Services and the Head of HR, or their nominees, will meet with the employee and/or their representative and review the case. Their decision will be final and should agreement still not be reached then action to recover the overpayment shall proceed in the normal way. An employee retains the right to raise a grievance against recovery of overpayments.

Where a grievance is raised it will be referred to the Appeals sub-committee. No action to recover will proceed until the decision of the Appeals sub-committee is known.

AGRICULTURAL FIELD TOILET INSPECTION PROGRAM

With excerpts from California
Health and Safety Code California
Code of Regulations



Consumer Health Protection Services 2007

County of Monterey
Environmental Health Division
1270 Natividad Rd Ste 42
Salinas CA 93906

AGRICULTURAL FIELD TOILET INSPECTION PROGRAM

Purpose

The ~~*Agricultural Field Toilet Inspection Program*~~ (AFTIP) has two purposes:

- ~~• to prevent contamination of food crops by field workers because of unsanitary field toilets, and~~
- ~~• to keep workers healthy by making sure they have enough safe drinking water.~~

AFTIP applies to all owners of field toilets that are provided for use by workers in Monterey County agricultural fields.

AFTIP requires that sanitary field toilet and hand washing facilities, and fresh drinking water, are easily available to food crop workers, and requires the permitting, inspection and enforcement of codes and regulations concerning field toilets, hand washing facilities and drinking water stations.

Background

Food crops that are contaminated in the field can cause the people who eat them to become ill. The Monterey County Health Department has documented reports that people may have contracted *Shigella*, *Salmonella* and *E. coli* illnesses after eating vegetables grown in Monterey County.

Contamination of food crops in the field can happen when:

- ~~$\frac{3}{4}$ a worker touches food crops with unwashed hands, or~~
- ~~$\frac{3}{4}$ food crops are contaminated by excreta (urine or feces) in the soil, or~~
- ~~$\frac{3}{4}$ flies that are attracted to excreta in the soil then carry the contaminants to the food crops.~~

These kinds of contamination can be stopped by making sure that field toilets are sanitary and convenient to use, and that there is plenty of clean water for washing hands.

It is also important, and required by the California Code of Regulations, Section 3457, to provide safe drinking water to field workers for their health and comfort while working.

The field toilet owner, or lessee of such field toilet, must tell each employee where the field toilets, hand washing facilities and drinking water stations are located and must give each employee reasonable time during the day to use them.

The field toilet owner, or lessee of such field toilet, must also make sure that employees properly use the field toilets, hand washing facilities and drinking water stations provided, and must explain to each employee the importance of following good health practices to stop contamination of food crops and to reduce the dangers of communicable diseases, agrichemical residues, dehydration and heat exhaustion.

Permits

~~Any field toilet owner that plans to provide one or more field toilets for use by workers in Monterey County agricultural fields after June 30, 2007, is required to submit a completed AFTIP Permit Application, with appropriate fees, to the Environmental Health Division of the Monterey County Health Department before January 1, 2008, for the fiscal year July 1, 2007, through June 30, 2008. In April of each year after that, the permit must be renewed for the following fiscal year.~~

~~The AFTIP Permit Application asks for general business information, the locations of storage yards, the methods used to remove waste from field toilet units, and the total number of toilets owned. The AFTIP Permit Application applies to all field toilets, hand-washing facilities and drinking water stations that will be provided for use by agricultural field workers.~~

~~If any new or additional unpermitted field toilet, hand-washing facility or drinking water station is planned for use in the field, an updated AFTIP Permit Application, with appropriate fees (if applicable), must be submitted to the Environmental Health Division of the Monterey County Health Department, and a new yearly permit must be received before it can be used.~~

~~After December 31, 2007, any field toilet owner that provides one or more field toilets for use by workers in Monterey County agricultural fields will be required to possess a valid annual health permit issued by the Environmental Health Division of the Monterey County Health Department for each field toilet, hand-washing facility and drinking water station in use. Health permits are valid for one year, July 1 through June 30 of the following year, and must be renewed in April of each year to remain valid.~~

Field Toilets

~~**After December 31, 2007, all field toilets provided for use by workers in Monterey County agricultural fields must have a valid Monterey County Health Department inspection sticker affixed to the outside, front, upper left corner of each unit.**~~

~~A field toilet is typically a portable chemical toilet. It is designed to temporarily contain excreta so that it cannot contaminate food crops and the soil where the crops are grown.~~

- ~~• The field toilet owner, or lessee of such field toilet, must service and maintain each field toilet in a clean, sanitary condition and keep it in good repair at all times.~~
- ~~• Written records of maintenance must be made by the field toilet owner, or lessee of such field toilet, and kept for two years.~~
- ~~• Field toilets must be screened to keep flies and other vermin away from the excreta.~~
- ~~• Field toilets must be ventilated and have self-closing doors, lockable from the inside, and must be constructed to ensure privacy.~~
- ~~• Field toilets must be at least eight (8) square feet, with a width of at least two and one-half (2 1/2) feet for each toilet seat. At least ten (10) square feet, with a width of at least two and one-half (2 1/2) feet, is required when a urinal is~~

included. Enough additional space must be included if handwashing facilities are inside the facility.

- The wastewater tank on chemical toilets must be constructed of durable, easily cleanable material and have a tank capacity of at least forty (40) gallons.
- Construction must prevent splashing on the occupant, field or road.
- Field toilets must be rigidly constructed and their inside surfaces must be made of nonabsorbent material, smooth, easily cleanable, and finished in a light color.
- Toilet paper must be provided in a suitable holder inside each field toilet at all times.
- A hand washing facility must be adjacent to every field toilet.
- Field toilets must be located within a one-quarter (1/4) mile walk or within five (5) minutes, whichever is shorter.
 - Exception: A field toilet owner, or lessee of such field toilet, may provide transportation to toilet and handwashing facilities, as an alternative means of compliance if:
 1. employees perform field work for a period of less than two (2) hours (including transportation time to and from the field),
 2. fewer than five (5) employees in any agricultural establishment are engaged in hand-labor operations on any given day, or
 3. employees are not engaged in hand-labor operations.
 - Effective odor control and solid-liquefying chemicals must be used in chemical toilet waste holding tanks.
 - Contents of field toilets must be disposed of by draining or pumping into a sanitary sewer, an approved septic tank of sufficient capacity to handle the wastes, by a permitted liquid waste hauler transporting liquid waste for proper disposal, or by another method approved by the local health department. The disposal of wastes from toilet or handwashing facilities must not cause unsanitary conditions, nuisance, or contamination.
 - Any spillage or leakage of the field toilet contents must be reported immediately to the farm operation, and to the Environmental Health Division of the Monterey County Health Department, to ensure proper mitigation of the hazard.
 - A field toilet owner, or lessee of such field toilet, must provide separate toilet facilities for each sex for every twenty (20) employees or fraction thereof. Where there are less than five employees, separate toilet rooms for each sex are not required provided toilet rooms can be locked from the inside and contain at least one toilet.

Hand Washing Facilities

A hand washing facility is a basin, container, or outlet with an adequate supply of potable water, soap or other suitable cleansing agent and single-use towels.

- The field toilet owner, or lessee of such field toilet, must service and maintain each hand washing facility in a clean, sanitary condition and keep it in good repair at all times.
- The hand washing water tank must provide at least fifteen (15) gallons. The field toilet owner, or lessee of such field toilet, must refill the water tank with potable water before it becomes empty.
- A hand washing facility must be located adjacent to every field toilet.

- ~~The field toilet owner, or lessee of such field toilet, must provide one hand washing facility for every twenty (20) employees or fraction thereof.~~
- ~~Hand washing water must be of drinkable quality.~~
- ~~A sign must be posted that says the water is only for hand washing.~~
- ~~Soap and paper towels must be provided.~~
 - ~~A waste receptacle must be provided for waste paper, cups and other trash, and should be constructed so as to prevent litter from blowing out of it due to wind or during transport on roadways.~~
 - ~~The hand washing facility wastewater must discharge directly into a wastewater holding tank of 30 gallons capacity or greater.~~

Drinking Water Stations

~~Drinking water must be placed in locations easily accessible to all employees. Access to drinking water must be permitted at all times.~~

- ~~The field toilet owner, or lessee of such field toilet, must service and maintain each drinking water station in a clean, sanitary condition and keep it in good repair at all times.~~
- ~~Drinking water containers shall be regularly cleaned, shall be refilled daily or more often as necessary, and shall be kept covered and protected to prevent persons from dipping the water by hand or otherwise contaminating it.~~
- ~~The water shall be fresh and pure, suitably cool, and in sufficient amounts, taking into account the air temperature, humidity, and the nature of the work performed, to meet the needs of all employees.~~
- ~~The water shall be dispensed in single-use drinking cups or by fountains. (The use of common drinking cups or dippers is prohibited.)~~
- ~~Drinking water containers shall be constructed of materials that maintain water quality, and shall be provided with a faucet, fountain, or other suitable device for drawing the water.~~

Inspection

~~Environmental Health Specialists will inspect field toilets, hand washing facilities and drinking water stations at storage yards or in agricultural fields. All agricultural operations subject to permitting and inspection must allow the environmental health specialist inspector to enter such premises at any time.~~

~~An inspection report will be completed at each inspection site. The inspection report will list any violations and reference the statute or regulation violated. The report will also be used as a notice of correction.~~

~~A copy of the inspection report will be given to the owner or operator. All violations will be reported to the Employment Development Department as required by Section 113355 (b), H&S.~~

Enforcement

~~Violations will be referred to as critical or non-critical. All critical violations must be corrected immediately. Non-critical violations must be corrected within five working days of notification to the operator.~~

~~Any person who knowingly and willfully violates any statutes or regulations referenced in this policy will be guilty of a misdemeanor (Section 113360 H&S).~~

Codes and Regulations

~~Existing statutes and regulations provide for sanitation and drinking water supplies for field workers in California. These statutes and regulations are found in the California Health and Safety Code Sections 113310 through 113360, Title 8, Section 3457 (OSHA) California Code of Regulations, and Title 17, Division 1, Chapter 5, Subchapter 1, Group 11, Article 3, Sections 8005 through 8008.~~

~~Section 113355. (a) H&S states: "The primary responsibility for enforcement of this article shall be vested in the local health officers; county agricultural commissioners may participate in enforcement. The State Departments of Health Services, Industrial Relations, and Food and Agriculture may also enforce this article."~~

~~CALIFORNIA CODE OF REGULATIONS, TITLE 8, §3457~~

~~(a) Scope: This section shall apply to all agricultural employers. (b)~~

~~Definitions.~~

~~“Agricultural employer” means any person, corporation, association, or other legal entity that:~~

~~A. Owns or operates an agricultural establishment;~~

~~B. Contracts with the owner or operator of an agricultural establishment in advance of production for the purchase of a crop and exercises substantial control over production; or~~

~~C. Recruits and supervises employees or is responsible for the management and condition of an agricultural establishment.~~

~~“Agricultural establishment” is a business operation that uses paid employees in agricultural operations.~~

~~“Agricultural operation” means any operation necessary to farming pursuant to Section 3437.~~

~~“Hand-labor operations” means agricultural activities or agricultural operations performed by hand or with hand tools in the production of food, fiber, or other materials such as seed, seedlings, plants, or parts of plants. “Hand-labor operations” also include other activities or operations performed in conjunction with hand-labor in the field. Some examples of “hand-labor operations” are the hand-manipulation of irrigation pipes and other irrigation equipment by irrigators; the hand-cultivation, hand-weeding, hand-planting and hand-harvesting of vegetables, nuts, fruits, seedlings or other crops, including mushrooms; and the hand packing of produce into containers, whether done on the ground, on a moving machine or in a temporary packing shed located in the field. “Hand-labor” does not include such activities as logging operations, the care or feeding of livestock, or hand-labor operations in permanent structures (e.g., canning facilities or packing houses).~~

~~“Handwashing facility” means a facility providing either a basin, container, or outlet with an adequate supply of potable water, soap or other suitable cleansing agent and single-use towels.~~

~~“Potable water” means water that meets the primary standards for drinking purposes found in Title 22, California Code of Regulations, Division 4, Chapter 15.~~

~~“Toilet facility” means a fixed or portable facility designed for the purpose of adequate collection and containment of the products of both defecation and urination which is supplied with toilet paper adequate to employee needs. Toilet facility includes biological, chemical, flush and combustion toilets and sanitary privies, in portable or mixed form.~~

~~(c) Requirements.~~

~~Agricultural operations not involving hand labor operations shall meet the requirements of Sections 3360-3368.~~

~~All other agricultural operations shall meet the following requirements: (1)~~

~~Potable drinking water.~~

~~(A) Potable water shall be provided during working hours and placed in locations readily accessible to all employees. Access to such drinking water shall be permitted at all times.~~

~~(B) The water shall be fresh and pure, suitably cool, and in sufficient amounts, taking into account the air temperature, humidity, and the nature of the work performed, to meet the needs of all employees.~~

~~(C) The water shall be dispensed in single-use drinking cups or by fountains. The use of common drinking cups or dippers is prohibited.~~

~~Note: For the purposes of this section, the term “common use,” when applied to a drinking receptacle, is defined as its use for drinking purposes by, or for, more than one person without its being thoroughly cleansed and sterilized between consecutive uses thereof by methods prescribed by or acceptable to the State Department for Health Services.~~

~~(D) Drinking water containers shall be constructed of materials that maintain water quality, and shall be provided with a faucet, fountain, or other suitable device for drawing the water.~~

~~(2) Toilet and handwashing facilities.~~

~~(A) Separate toilet facilities for each sex shall be provided for each twenty (20) employees or fraction thereof. One handwashing facility shall be provided for each twenty (20) employees or fraction thereof. Where there are less than five employees, separate toilet rooms for each sex are not required provided toilet rooms can be locked from the inside and contain at least one water closet. Urinals may be installed instead of water closets in toilet rooms to be used only by men provided that the number of water closets shall not be less than two-thirds the minimum number of toilet facilities.~~

~~Exception: An employer may provide transportation to toilet and handwashing facilities,~~

~~as an alternative means of compliance if: 1. employees perform field work for a period of less than two (2) hours (including transportation time to and from the field), 2. fewer than five (5) employees in any agricultural establishment are engaged in hand-labor operations on any given day, or 3. employees are not engaged in hand-labor operations.~~

~~(B) Toilet and hand-washing facilities shall at all times meet the following standards:~~

- ~~1. Toilet facilities shall be appropriately screened to keep flies and other vermin away from the excreta.~~
- ~~2. Units housing toilet and handwashing facilities shall be ventilated and provided with self-closing doors, lockable from the inside, and shall be otherwise constructed to ensure privacy.~~
- ~~3. Toilet facilities shall provide a minimum area of eight (8) square feet, with a minimum width of two and one-half (2 1/2) feet for each toilet seat. A minimum area of ten (10) square feet, with a minimum width of two and one-half (2 1/2) feet, shall be required when a urinal is included. Sufficient additional space shall be included if handwashing facilities are within the facility.~~
- ~~4. The wastewater tank on chemical toilets shall be constructed of durable, easily-cleanable material and have a minimum tank capacity of forty (40) gallons. Construction shall be such as to prevent splashing on the occupant, field, or road.~~
- ~~5. The handwashing water tank shall provide a minimum capacity of fifteen (15) gallons.~~
- ~~6. Units housing toilet and handwashing facilities shall be rigidly constructed and their inside-surfaces shall be of nonabsorbent material, smooth, readily cleanable, and finished in a light color.~~
- ~~7. Water flush toilets and handwashing facilities shall conform to Title 24, California Code of Regulations, Part 5, California Plumbing Code.~~

~~(C) Toilet and handwashing facilities shall be accessibly located and in close proximity to each other.~~

~~(D) The facilities shall be located within a one-quarter (1/4) mile walk or within five (5) minutes, whichever is shorter.~~

~~(E) Where due to terrain it is not feasible to locate facilities as required above, the facilities shall be located at the point closest to vehicular access.~~

~~(3) Maintenance standards: Potable drinking water facilities, toilet facilities, and handwashing facilities, which are under the control of the employer, shall be serviced and maintained by the employer at all times in accordance with appropriate public-health sanitation practices, including the following:~~

~~(A) Drinking water containers shall be regularly cleaned, shall be refilled daily or more often as necessary, and shall be kept covered and protected to prevent persons from dipping the water by hand or otherwise contaminating it.~~

~~(B) Toilet facilities shall be, at all times, operational, maintained in a clean and sanitary condition, and kept in good repair. Written records of service and maintenance shall be maintained and retained for two years.~~

~~(C) Toilet paper shall be provided in a suitable holder in each toilet unit.~~

~~(D) Effective odor control and solid-liquefying chemicals shall at all times be used in chemical toilet waste holding tanks.~~

~~(E) Contents of chemical tanks shall be disposed of by draining or pumping into a sanitary sewer, an approved septic tank of sufficient capacity to handle the wastes, a suitably sized and constructed holding tank approved by the local health department, or by any other method approved by the local health department.~~

~~(F) Privies shall be moved to a new site or taken out of service when the pit is filled to within two (2) feet of the adjacent ground surface. The pit contents shall be covered with at least two (2) feet of well-compacted dirt when the privy is moved.~~

~~(G) Handwashing facilities shall at all times meet the following standards:~~

~~1. Pure, wholesome, and potable water shall be available for handwashing.~~

~~2. Handwashing facilities shall be refilled with potable water as necessary to ensure an adequate supply.~~

~~3. Soap or other suitable cleansing agent and single-use towels shall be provided.~~

~~4. Signs shall be posted, indicating that the water is only for handwashing purposes.~~

~~5. Handwashing facilities shall be provided at the toilet unit or in the immediate vicinity.~~

~~6. Handwashing facilities shall be maintained in a clean and sanitary condition. (H)~~

~~The disposal of wastes from toilet or handwashing facilities shall not cause unsanitary conditions, nuisance, or contamination.~~

~~(4) Reasonable use: The employer shall notify each employee of the location of the sanitation facilities and potable water and shall allow each employee reasonable opportunities during the workday to use these facilities. The employer shall ensure that employees use the sanitation facilities provided and shall inform each employee of the importance of each of the following good hygiene practices to minimize exposure to the hazards in the field of heat, communicable diseases, retention of urine, and agrichemical residues:~~

~~(A) Use the water and facilities provided for drinking, handwashing, and elimination;~~

~~(B) Drink water frequently, especially on hot days; (C)~~

~~Urinate as frequently as necessary;~~

~~(D) Wash hands both before and after using the toilet; and~~

~~(E) Wash hands before eating and smoking.~~

~~(d) Required Reports: Employers cited under this section shall provide to the Division annually for a period of five (5) years following the final order of a citation a written statement under penalty of perjury giving the following information: the estimated peak number of employees; the toilets, washing, and drinking water facilities to be provided by the employer; and any rental and maintenance agreements related to the requirements of this subsection.~~

~~CALIFORNIA CODE OF REGULATIONS, TITLE 17, §8006 – §8011~~

~~§8006. Suitable Chemicals (for chemical toilets)~~

~~Odor control and solid liquefying chemicals that are effective at all times shall be used in chemical toilet waste holding tanks.~~

~~§8007. Disposal of Contents of Chemical Tanks~~

~~Contents of chemical tanks shall be disposed of by draining or pumping into a sanitary sewer, an approved septic tank of sufficient capacity to handle the wastes, a suitably sized and constructed holding tank, approved by the **local health department**, or by any other method approved by the **local health department**.~~

~~§8008. Standards (for Handwashing Facilities)~~

~~Handwashing facilities shall meet the following standards:~~

- ~~(a) Pure, wholesome, and potable water shall be available for Handwashing. (b) Signs shall be posted, indicating that the water is only for Handwashing purposes.~~
- ~~(c) The water tank shall provide a minimum capacity of fifteen (15) gallons.~~
- ~~(d) Handwashing facilities shall be provided at the unit or in the immediate vicinity.~~

~~§8010. Toilets~~

~~It shall be the responsibility of the employer to insure that toilets are serviced and maintained in a clean, sanitary condition and kept in good repair at all times.~~

~~§8011. Toilet Paperholder~~

~~Toilet paper shall be provided in a suitable holder in each toilet unit.~~

~~CALIFORNIA HEALTH & SAFETY CODE, SECTIONS 113310 – 113355~~

~~113310.~~ ~~The Legislature finds and declares that the people of the State of California have a primary interest in the sanitary conditions under which food crops are grown~~

~~and harvested for human consumption and in the health and related sanitary conditions under which the workers are employed in the growing and harvesting of food crops.~~

~~The Legislature hereby finds and declares that the provision of sanitary and handwashing facilities for those employed in the growing and harvesting of food crops is necessary to the preservation of sanitation and health and that facilities are necessary to maintain the dignity of workers.~~

~~113315. For the purposes of this article "food crop" shall mean all fruits and vegetables intended for human consumption.~~

~~113320. For the purpose of this article "food crop growing and harvesting operation" shall mean any field activity or operation wherein a food crop is grown and harvested, where five or more employees are working as a crew, unit, or group for a period of two or more hours.~~

~~113325. Every employer shall provide or cause to be provided toilet and handwashing facilities for every food crop growing and harvesting operation.~~

~~113330. Employees shall use the toilet and handwashing facilities provided.~~

~~113335. Toilet facilities shall provide privacy and shall be so designed as to keep human excreta from contaminating the crop and to keep flies away from the excreta. Toilet paper shall be provided. Toilet facilities shall be maintained in a clean and sanitary condition.~~

~~113340. Handwashing facilities shall be such as to afford an opportunity to wash hands in clean water using soap or other suitable cleansing agent and to dispose of used wash water without nuisance or contamination of food crop.~~

~~113345. Toilet and handwashing facilities for food crop harvesting operations shall be provided at convenient locations. For the purpose of this article "convenient" means within a five-minute walk of place of work.~~

~~When, because of layout of access roads, ground terrain, or other physical conditions, it is not possible to comply with the foregoing requirement, toilet and handwashing facilities shall be located at the point of vehicular access closest to the workers.~~

~~113350. (a) Except as provided in Section 18930, the department, after consultation with the State Departments of Food and Agriculture and Industrial Relations, may make and adopt reasonable regulations~~

~~in accordance with this article pursuant to Chapter 3.5 (commencing with Section 11340) of Part 1 of Division 3 of Title 2 of the Government Code and may adopt and submit building standards for approval pursuant to Chapter 4 (commencing with Section 18935) of Part 2.5 of Division 13. The regulations shall be at least as effective as those adopted pursuant to Section 6712 of the Labor Code.~~

~~(b) No part of this article shall be construed to abridge or limit in any manner the jurisdiction of the Division of Occupational Safety and Health pursuant to Division 5 (commencing with Section 6300) of the Labor Code.~~

~~113355.~~ (a) The primary responsibility for enforcement of this article shall be vested in the local health officers; county agricultural commissioners may participate in enforcement. The State Departments of Health Services, Industrial Relations, and Food and Agriculture may also enforce this article.

(b) Any agency enforcing this article shall report any violation to all field offices of the Employment Development Department located in the county where the violation occurs. The report shall identify the employer responsible for the violation, the nature of the violation, and the location of the food crop growing and harvesting operation where the violation occurs. The Employment Development Department shall not refer persons for employment to any employer or food crop growing and harvesting operation identified in the report until the agency reporting the violation certifies that the violation has been corrected.

~~113360.~~ Any person who knowingly and willfully violates any of the provisions of this article, or of the regulations adopted under this article, is guilty of a misdemeanor.

NOTE

Authority cited: Sections 142.3 and 6712, Labor Code. Reference: Sections 142.3, 2441 and 6712, Labor Code